COVID-19 Scenarios

The information shared on this chart does not necessarily guarantee benefits. Speak with your local HR consultant to verify coverage.

#	Scenario Description	Sick Leave	Family and Medical Leave Act	Washington Paid Family and Medical Leave	Vacation Leave	Shared Leave	Leave Without Pay	No Loss in Pay (leave with pay, use miscellaneous leave code 9045)
Sample scenarios		Standard	Standard	Standard	Standard	Standard	Standard	Authorized by Governor's Proclamation 20-05 and State HR Direction
1	Employee tests positive for COVID-19 and has indicated they are unable to perform work the employer has available for them (availability of telework does not preclude the employee from taking the leave)	✓	May qualify; work with your HR consultant	Refer to ESD	✓	May qualify; work with your HR consultant	✓	✗
2	Employee has symptoms of COVID-19, is seeking a medical diagnosis and has indicated they are unable to perform work the employer has available for them (availability of telework does not preclude the employee from taking the leave)	✓	May qualify; work with your HR consultant	Refer to ESD	✓	May qualify; work with your HR consultant	✓	✗

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3	Employee is subject to a governmental stay home order and the employer does not have any work for them to do (telework is also not available)	✗	✗	✗	✓	✗	✓	✗
4	Employee is not sick but has been advised by a health care provider not to be in the workplace due to increased risk of COVID-19, but does not qualify as high risk as defined in HELSA (NOTE: Where telework is determined to be a reasonable accommodation available to the employee, an employer may limit the use of leave)	✓	May qualify, work with your HR consultant	Refer to ESD	✓	May qualify; work with your HR consultant	✓	✗
5	Employee cannot perform work the employer has available for them because they are caring for an individual who is quarantining, isolating, or remaining at home due to an order related to COVID-19 (availability of telework does not preclude the employee from taking the leave)	May qualify; work with your HR consultant	May qualify; work with your HR consultant	Refer to ESD	✓	May qualify; work with your HR consultant	✓	✗

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6	Employee cannot perform work the employer has available for them because their child's school is closed/in remote learning mode and/or their child care provider is unavailable due to COVID-19 (availability of telework does not preclude the employee from taking the leave)	✓	✗	✗	✓	May qualify; work with your HR consultant	✓	✗
7	Employee cannot perform work the employer has available for them because their child was exposed or screened out due to symptoms from the child's school or daycare and needs to quarantine/isolate due to COVID (availability of telework does not preclude the employee from taking the leave)	✓	✗	✗	✓	May qualify; work with your HR consultant	✓	✗
8	Employee fears congregate areas and refuses to come to work	✗	✗	✗	May qualify; work with your HR consultant	✗	May qualify; work with your HR consultant	✗

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9	Employee is not sick but has been advised by a health care provider not to be in the workplace due to high risk of COVID-19 as defined in HELSA (NOTE: Where telework is determined to be a reasonable accommodation available to the employee, an employer may limit the use of leave)	✓	May qualify; work with your HR consultant	Refer to ESD	✓	May qualify; work with your HR consultant	✓	✗
10	Employee is subject to a governmental stay home order and the employer has telework for them, but the employee cannot perform it (i.e., such as lack of internet)	✗	✗	✗	✓	May qualify; work with your HR consultant	✓	✗
11	Employee is receiving the COVID-19 vaccine booster and it is not offered at the workplace *Reasonable leave is determined by the employer For employees receiving vaccination regimen, please see question #14.	✗	✗	✗	✗	✗	✗	✓ Reasonable leave to travel and receive a vaccine booster if vaccine booster is not offered at the workplace; leave in excess of 1 day permitted in extraordinary circumstances

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12	The employer is offering the COVID-19 vaccine booster at the workplace but the employee is accessing the vaccine booster elsewhere For employees receiving vaccination regimen, please see question #14.	✓	✗	✗	✓	✓	✓	Employer *may*, but is not required to, authorize reasonable leave with pay to travel and receive a vaccine booster if vaccine booster is not offered at the workplace; in excess of 1 day permitted in extraordinary circumstances
13	The employee has received the COVID-19 immunization and is experiencing side effects	✓	May qualify; work with your HR consultant	May qualify; work with your HR consultant	✓	✓	✓	✗

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14	Being fully vaccinated is a condition of employment pursuant to proclamation 21-14.3; therefore, time to travel and receive the vaccination regimen must be treated as work time. As work time, employees must be compensated for all time spent to travel and receive the vaccine, even if they obtain the vaccination outside of their normal working hours. For booster shots, please see question #11 and/or #12.	✗ Treated as time worked	✗ Treated as time worked	✗ Treated as time worked	✗ Treated as time worked	✗ Treated as time worked	✗ Treated as time worked	✗ Treated as time worked
15	If an employee is exposed to COVID-19 at the workplace, and the employee wishes to be tested, the agency *may* treat the time to be tested as work time. The agency may require the employee to provide the results of the test in this circumstance. If an employer does not choose to consider it work time, an employee could use applicable leave.	May be treated as time worked	May be treated as time worked	May be treated as time worked	May be treated as time worked	May be treated as time worked	May be treated as time worked	May be treated as time worked

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16	If an employee is exposed to COVID-19 and the agency is requiring that the employee be tested, the agency *must* treat the time as work time.	✗ Must be treated as time worked	✗ Must be treated as time worked	✗ Must be treated as time worked	✗ Must be treated as time worked	✗ Must be treated as time worked	✗ Must be treated as time worked	✗ Must be treated as time worked